

Form No: HCJD/C-121

Order Sheet.
IN THE LAHORE HIGH COURT
LAHORE
JUDICIAL DEPARTMENT.

Case No. W.P.No.39291/2015

Kamil Khan Mumtaz etc

Versus

Province of Punjab and others

S. No. of order/ Proceeding	Date of order/ proceeding	Order with signature of Judge, and that of parties or counsel, where necessary.
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28.1.2016.	M/s Khawaja Ahmad Tariq Raheem, Mohammad Azhar Siddique, Shahanshah Shamil Paracha, Muhammad Irfan, Muneer Ahmad, Humayun Rasool, Ismail Shabir, Advocates, for the petitioners/applicants. Khawaja Haris Ahmad, Advocate for Government of Punjab and LDA alongwith Israr Saeed, Chief Engineer, LDA, Ameer Hassan, Director Law LDA, Muhammad Rashid, Dy. Director Law LDA and Nawaz Manak, Director Law EPD. M/S Shan Gull and Imtiaz Kaifi, Addl. A.G. for Government of Punjab. Syed Ali Zafar, Advocate/Amicus Curiae.
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C.M.No.7942/2015

This application for grant of interim relief has been
filed by the petitioners in writ petition No.39291/2015, which has
been filed by way of public interest litigation.

2. Brief facts are that in order to cater for traffic congestion and future transport demand in city of Lahore, a metro train project was proposed by Government of Punjab. To execute said project, the Punjab Mass Transit Authority (PMA) was established under Punjab Mass Transit Authority Act, 2015 which entered into contract dated 20.4.2015 with Chinese contractor M/S C.R-NORINCO (herein after referred to contractor). Lahore Development Authority (LDA) was assigned civil work part of this project being a nominee of PMA.

3. The petitioners have filed this constitutional petition challenging the legality of aforesaid major transport project commonly known as Lahore Orange Line Metro Train Project (herein after referred to project) inter-alia on the ground that approval, plans, allocation of funds and construction of said project are violative of various laws including Antiquity Act, 1975 (Act of 1975), the Punjab Special Premises (Preservation) Ordinance, 1985 (Ordinance of 1985), Punjab Heritage Foundation Act, 2005 (Act of 2005), various international conventions (being construction carried out near to immovable antiquity properties and special premises). It is further averred in petition that said project also violate various Articles of Constitution of Islamic Republic of Pakistan, 1973 (Constitution) including Article 9,

10-A,14,23,24,25,28,32,38 and 140-A of the Constitution. It is also inter alia alleged that entire process of tendering, awarding of contract and preparation of feasibility reports are sham and in violation of PPRA laws and also does not meet transparency criteria and level playing field for interested bidders. The writ petition is accompanied with an application for grant of interim relief with following prayer:-

“Instant application may very kindly be allowed all construction works near the monuments/heritage site as detailed in writ petition within area of 200 feet as directed in section 23 of the Antiquity Act, 1975 may very kindly be directed to stopped/held in abeyance till the decision of the writ petition”

Any other appropriate relief which this honourable Court deems appropriate may kindly be granted.

4. Khawaja Ahmed Tariq Rahim and Mr. Mohammad Azhar Siddique, advocates/Learned counsel for the applicant argued that the project will severely damage and harm various properties including 26 heritage sites of Lahore City (detail of which are given in para No.23 of main writ petition). Learned counsel submits that the said properties being immovable antiquities under section 2(g) of the Act of 1975 and special premises under section 2(a) of Ordinance of 1985, the said properties are required to be preserved and protected and no new construction can be allowed within 200 feet distance of these properties as prescribed under section 22 of Act of 1975 and section 11 of Ordinance of

1985. Submits that these heritage sites and monuments are also to be protected by the state under various international conventions, to which Pakistan is signatory. Submits that if construction allowed to be continued within 200 feet distance, these heritage sites will not only be destroyed, damaged, defaced but will also be mutilated. Submits that Director General Archeology (Director General) was bound under Act of 1975 and Ordinance of 1985 to protect these sites and NOC for construction within 200 feet distance could only be given to advance and achieve the purpose of these laws and not for to frustrate the object of these laws and intention of legislation based on extraneous considerations. Submits that NOC issued by Director General dated 16.11.2015 under section 22 of the Act of 1975 and NOC dated 30.11.2015 issued by the Committee under section 11 of the Ordinance of 1985 giving permission to carry on construction within prohibited limits of 200 feet of protected antiquities and special premises are not only arbitrary, malafide, patently illegal, without lawful authority but same are also without application of independent mind. Submits that before granting said NOCs, the purpose of the Act of 1975 and Ordinance of 1985 to preserve and protect these heritage sites and monuments was grossly compromised. Submits that NOCs are based on extraneous and irrelevant considerations

and were also given in blanket form without assessing individually that how much harm may be caused to each of these heritage sites by new construction within prohibited limit of 200 feet prescribed under the law. Submits that even provisions of Act of 2005 and various international conventions to which Pakistan is signatory, were not kept in mind by Authorities before granting NOCs and putting these precious heritage sites under serious threat and danger of being destroyed, damaged and mutilated. Further submits that no Archeological experts, historians or even the stakeholders including the petitioners (who are repeatedly making hue and cry for protection of heritage properties and monuments) were consulted or heard before granting NOCs. Contends that NOCs were granted due to undue influence of higher authorities as the Committee which granted NOC was headed by the Chief Secretary, Government of the Punjab and similarly Director General being an employee of Government was also pressurized to issue NOC within two days time without consulting any independent experts, therefore, entire process was just an eye wash. Further submits that as antiquity properties and special premises are admittedly protected under various laws, therefore, petitioners makes out a good prima facie case against illegal construction within prohibited limits of 200 feet of heritage sites.

He contends that in case, interim relief is not granted and damage is caused to any of these heritage sites, it will not only cause irreparable but loss which can never be forgotten and compensated in future. Further submits that Government can carry out development in accordance with law but at the same time, State being custodian of national heritage and historical monuments, it is also the duty of State to protect these sites while under taking these developments. Learned counsel therefore submits that balance of convenience also lies in favour of the petitioners for grant of interim relief.

5. Syed Ali Zafar, Advocate (Learned Amicus Curiae) explained the scope of judicial review and submits that to undertake and execute sustainable urban development is prerogative of the State and it is not for this Court to interfere in such development projects. He however, submits that only in five exceptional situations, this Court can interfere in decision making of State i.e. where decision of Government is ultra vires of any law and constitution or violative of fundamental rights or such decision suffers from error of law or discretion has been exercised arbitrarily and without cogent reasons or even if reasons were given, the said reasons were given without taking into consideration relevant factors or they are based on irrelevant

consideration. He submits that the project in question consists of huge structure and buildings and running along various heritage sites of historical city of Lahore. He submits that to protect heritage sites, various laws were promulgated by law makers. Submits that under Act of 1975, no antiquity can be harmed rather same is to be preserved and protected. Director General under section 5 of Act of 1975 not only has positive obligation to protect these antiquity but under section 22, there is also a negative injunction against all that no construction can be carried out within 200 feet of these heritage sites. Submits that discretion with Director General under section 22 of the Act of 1975 and discretion with Committee under section 11 of the Ordinance of 1985 to grant NOC can only be exercised in exceptional circumstances where there is no probability of any harm to these antiquity properties or special premises. He submits that to achieve purpose of the Act of 1975 and Ordinance of 1985, the Director General and Committee were required to give findings in respect of each sites separately after recording reasons and obtaining expert opinion and site visits to the effect that no harm and damage is likely to be cause to any of these heritage sites. He submits that NOCs granted by Authorities to carry out construction within 200 feet of these heritage sites are by no stretch of

imagination can be treated as reasoned orders. He submits that there is not only an apprehension but the project in question will actually physically harm 23 monuments, buildings and heritage sites which comes within the definition of antiquity and special premises. He therefore, submits it is appropriate to grant interim relief at this stage rather wait till irreparable damage be caused to any of these heritage sites.

6. Learned counsel for the respondents Khawaja Haris Ahmed on the other hand argued that all 26 properties mentioned in para 23 of the writ petition are not covered under the ambit of Act of 1975 and Ordinance of 1985. He referred to section 2(J) and section 10 of Act of 1975 to submit that only those properties are protected antiquity which are declared by Government through notification in the official gazette as protected antiquity. He submits that restriction under section 22 of the Act of 1975 to carry on any construction within distance of 200 feet is only in respect of protected immoveable antiquity and not in respect of all immoveable antiquity defined in section 2(g) of the Act of 1975. He submits that out of 26 sites, only five sites i.e. Shalimar Gardens, Gulabi Bagh Gateway, Buddhu Tomb, Chauburji and Zebunnisa's Tomb are declared as protected antiquity under section 10 of the Act of 1975 which come under project alignment.

He submits that similarly not all properties are special premises under Ordinance of 1985 but only those properties are special premises which are duly declared and notified by Government as special premises under section 2(a) of the Ordinance of 1985 and it is only in respect of those special premises that prohibition of construction within 200 feet is applicable. Submits that at present, only five historical buildings are special premises in the vicinity of project i.e. Lakshmi Mansions, General Post Office (GPO), Aiwan-e-Auqaf (Shah Chiragh) Building, Mouj Darya Darbar Mosque and Supreme Court Registry Building, Lahore. He submits that though Saint Andrews Presbyterian Church, Nabha Road is not protected as special premises but LDA has shown due care and vigilance to save guard its integrity as well. While explaining the project, he submits that the project in question is public transport Metro Train Project. The master plan of project was prepared in 1998 and was approval by City District Government in the year 2004. He submits that keeping in view motorization trend and to keep congestion within reasonable limits and to meet demand of public transport, a Light Rail Transport (LRT) was approved by Government. After its approval, the feasibility was conducted by the Government of Punjab in the year 2006 and it was decided to execute orange line LRT project with length of 27.1 kilo meter.

He submits that total project will cost around about Rs.16.26 billion and about two lacs and fourty five thousand people/passengers will use this public transport per day. He submits that said project will be fully designed and constructed by Chinese enterprises and same will also be funded by Chinese Government by way of soft loans. He submits that contract has been executed by a Chinese joint venture company with PMA and the civil work component of this project was sublet to LDA. He submits that though above mentioned antiquities and special premises are in the vicinity of this project and construction will be carried out within 200 feet distance, however, due care has been taken that these properties shall not be harmed in any way. Further submits that NOCs were granted by the Director General and Committee, permitting such construction within 200 feet distance lawfully under section 22 of the Act of 1975 and section 11 of Ordinance of 1985 after due deliberation and application of mind. He submits that as the said authorities are empowered under law to issue NOC and same were issued after fulfilling all codel formalities, therefore, these NOCs cannot be challenged in judicial review proceedings being not arbitrary or ultra vires of any law. He further argued that before granting NOC dated 16.11.2015 under Act of 1975 and NOC dated 30.11.2015 under Ordinance of 1985,

Director General and Committee were given detailed presentation by the LDA on each and every protected heritage site and only after being satisfied that these immovable antiquities and special premises are duly protected, NOCs were granted by Director General and Committee concerned. He submits that petitioners do not make out a case for grant of interim relief because nothing has been placed on record to show that this project will damage any heritage building/site in any manner. He further submits that no irreparable loss will be caused if project be allowed to continue rather stay of project will cause inconvenience to public and will also delay the civil work which ultimately result in destroying credibility of Government in international arena. He contends that if stay is granted at this stage and ultimately petition be dismissed, it will create very embarrassing position for the respondent Government. He reiterated that once all legal formalities are fulfilled, there is no room to exercise power of judicial review and for grant of interim relief. Reliance is placed on Cutting of Trees for Canal Widening Project, Lahore: In the matter of Suo Motu Case No.25 of 2009, decided on 1st September, 2011 (2011 SCMR 1743). He further contends that under Article 199(4) of the constitution, no injunction can be granted to stop the public work. He concluded that this Court has to strike balance between

protection of heritage and special premises with public interest and in case of conflict, public interest will out weight heritage sites.

7. We have heard the arguments of learned counsel for the parties on this application for grant of interim relief and perused the record with their able assistance.

8. It is admitted position between the parties that Lahore is a city of rich culture and heritage which consists of many archeological sites and historical monuments. In order to protect these sites and monuments, the legislature promulgated various law including the Antiquities Act, 1975, The Punjab Special Premises (Preservation) Ordinance, 1985 and Punjab Heritage Foundation Act, 2005. It is also not disputed that Government of Pakistan is signatory to UNESCO convention concerning the protection of world cultural and heritage, 1972, through which, various historical monuments and sites of Pakistan have been placed on world heritage list. Under these laws and conventions, there is not only a positive duty on the Government functionaries to protect these heritage and archeological sites but there is also a negative injunction provided in Section 22 of the Act of 1975 and Section 11 of Ordinance of 1985 that no development plan, scheme or new construction shall be carried out within 200 feet of these immoveable protected antiquities and special premises. For ready

reference, provision of section 22 of the Act of 1975 and section 11 of the Ordinance of 1985 are reproduced hereunder:-

Section 22. Execution of Development schemes and new constructions in proximity to immovable antiquity.- *Notwithstanding anything contained in any other law for the time being in force, no development plan or scheme or new construction on, or within a distance of two hundred feet of, a protected immovable antiquity shall be undertaken or executed except with the approval of the [Director-General].*

Section 11. Execution of development schemes and new constructions in proximity of special premises. *No development plan or scheme or new construction on, or within a distance of two hundred feet of a Special Premises shall be undertaken or executed except with the approval of the Government or a Committee.*

9. It is also admitted on all hands that following buildings are protected immoveable antiquities under the Act of 1975 (i) Shalamar Garden (ii) Gulabi Bagh Gateway (iii) Buddhu's Tomb (iv) Chauburji, (v) Zebunnisa Tomb. Similarly following historical buildings are declared under Ordinance of 1985 as special premises (i) Lakshmi Building, (ii) General Post Office (G.P.O), (iii) Aiwan-e-Auqaf (Shah Chiragh) Building, (iv) Supreme Court Registry Building, (v) Mauj Darya Darbar & Mosque. There is also no dispute that said buildings and special premises are in vicinity of project and being effected by the alignment of the project as heavy construction is being carried on

within prohibited 200 feet limits of all these historical sites. However, the case of the respondents is that said construction within 200 feet is lawful because Director General under section 22 of the Act of 1975 and Committee under section 11 of Ordinance of 1985 have already given NOCs regarding construction of said project. The main argument of learned counsel for the respondents is that as the said NOCs were granted after fulfillment of all legal and codal formalities by the competent authority, therefore, this Court cannot substitute the decision of authority and no injunction can be granted.

10. There is no cavil with settled proposition that where decision is not ultra vires of law and also reasoned rational and reasonable, this Court in exercise of judicial review cannot set aside and displace such decision. There is also no doubt that development of roads and provision of better transport facility to public is the domain of State/Government and this Court is not to substitute or interfere with policy matter and decision making of the competent authority. However, these propositions are with caveat that where such decisions and recommendations of the competent authority are not in accordance with law or same are arbitrary, irrational and unreasonable, than mere magnitude of costs involved in the project will not deter the courts to direct the

State/Government to act strictly in accordance with law and to protect its own heritage and archeological sites.

11. There is no denial that under section 22 of the Act of 1975 and section 11 of Ordinance of 1985, Director General and Committee respectively were empowered to grant approval for new construction within 200 feet, however, such permission was to achieve purpose of the Act and intention of the legislation and not to derogate and frustrate the same. Before such permission could be granted, competent authorities were required to ensure that said heritage sites and special premises are duly preserved, protected and no harm is even expected to be caused to said historical sites. With this legal position in mind, prima facie the NOCs issued do not seem to fulfill the above legal requirements. The documents produced by respondents themselves shows that when the matter was placed before the then Director General of Archeological Department for issuance of NOC, he vide letter dated 05.11.2015 raised serious concerns and specifically mentioned in said letter that sites are protected under the Act of 1975 and Ordinance of 1985 and best possible solution should be found which do not compromise authenticity of these monuments and heritage sites. The then Director General on 06.11.2015, also constituted a Committee regarding issuance of NOC and said Committee on

09.11.2015 specifically mentioned regarding certain sites, in its report that project would be an irreversible intervention and it might result that minimum heritage of Pakistan will be removed from world heritage list permanently and same would also have negative impact on the tourism. Notwithstanding the above letter by the then Director General and recommendations of the committee, just after three days on 14.11.2015, a presentation was given to a newly appointed Director General by Chief Engineer LDA and said Director General in just two days time after holding an in-house meeting issued NOC dated 16.11.2015 to carry out construction within 200 feet of all heritage sites. Bare perusal of NOC dated 16.11.2015 shows that it is merely based on correspondence and a single presentation by Chief Engineer LDA on 14.11.2015. NO expert opinion from any archeologist, architect, historian or even the Committee which earlier dealt with issue of NOC was called for or consulted before grant of NOC for construction within prohibited area of heritage sites. The Chief Engineer LDA was admittedly not an expert on archeology but he was a construction person, therefore, his opinion and presentation was apparently not relevant enough factor to put all heritage sites under threat of destruction due to heavy construction within prohibited limit of 200 feet. Further in said NOC by Director

General, none of the protected antiquities properties were separately assessed, discussed and inspected to determine whether at all, it will be effected by construction of project in its vicinity and if at all NOC should or should not have been granted for any particular antiquity. Though learned counsel for the respondents referred to various documents and attempted to show that those properties were discussed individually by Director General but on the face of it, the NOC is silent about it and no such discussion is found therein. The NOC is also of general nature and blanket cover has been given to entire project near all antiquity properties without referring to any particular heritage site.

12. Similar is the case with NOC dated 30.11.2015 under the Ordinance of 1985 where NOC was granted as per plan presented by LDA for various special premises without seeking any expert advice or opinion from independent Advisory body. Further again no separate assessment regarding said special premises were made to determine whether at all NOC should or should not have been issued. On the face of it, both the above NOCs are based on irrelevant consideration, therefore, prima facie these NOCs cannot be treated as reasoned and rational decisions. Further, the respondents themselves produced UNESCO letter dated 20.10.2015, where it raised serious concerns about the project.

Despite said letter, even UNESCO was not taken into confidence before grant of NOCs rather after grant of NOCs, the said letter was replied on 17.12.2015 and UNESCO was asked to visit site and have meetings. This itself shows that there was not much considered and no reasons given by authorities before NOCs were issued for carrying on construction in prohibited zone.

13. The duty to give reasons has a statutory expression now and section 24-A, General Clauses Act, 1897 (Act of 1897), obliges an authority making an order or issuing a direction to give reasons. The duty cast by section 22 on the director was onerous and one of great responsibility. The provision has been enacted to work as a bulwark against any intrusion on the status of a protected immovable antiquity. That is the policy of the Act. It is a form of unreasonableness if public authorities were to set their faces against the policy of an Act. An extract from *Administrative law, Eleventh Edition by H.W.R. Wade & C.F. Forsyth* should be sufficient to shed light on the twin concepts of failure to give reasons and acting against the policy of law as being included in the categories of unreasonableness:

“The Padfield case, already discussed, shows the ‘statutory policy’ doctrine as applied to a minister of the Crown. The House of Lords held that in refusing to refer the milk producers’ complaint to the statutory committee the minister had acted so as to frustrate the policy of the Act, despite the fact that

its words were merely permissive; and that the political and other reasons given were irrelevant and indicative of unlawful motives....”

“The House of Lords also rejected the Crown’s argument that the minister need have given no reasons and that therefore such reasons as he volunteered to give could not be criticized. Going still further, the House declared that if in such a case he refused to give any reasons, the court might have to assume that he had no good reasons and was acting arbitrarily. In other words, the minister may not be able to disarm the court by taking refuge in silence....”

Padfield v. Minister of Agriculture, Fisheries and Food [1968] AC 1997 was relied upon for the proposition. Prima facie, therefore, we are of the opinion that there was a general duty on the director to give reasons for his decision. We are aware of the no less important doctrine that the court must not usurp the discretion of the public authorities appointed by legislature to take the decision. However, decision which are extravagant or capricious cannot be legitimate.

Kh. Harais Ahmad, Advocate submitted that if codal formalities were fulfilled, there was no prima facie case. It is established by now that prima facie case is arguable case. If no reasons have been given by the director and the petitioners have premised their case on the legal duty to give reasons, they certainly have a prima facie case. It requires deeper appreciation of the documents to conclude that the director was in possession

of material to make an informed decision, specially when NOCs are silent about such material.

14. We have also noted that section 3 of the Act of 1975 was amended in year 2012 and it was provided that Government shall by notification in the official gazette constitute an advisory committee consists of Archaeologist, Architects, Historians and members of the Provincial Assembly of the Punjab and the Director General shall be the Chairman of the Advisory Committee. However, till date, no advisory committee has been constituted by the Government and it was for this reason also that expert advice apparently lacking in NOCs. In any case, in absence of such committee, it was obligatory for the Director General himself to at-least seek advice from some independent committee or experts in Archaeology, Architects and Historians before grant of NOCs regarding precious heritage sites of Lahore city. There is no doubt that Government has to pursue its public development projects but at the same time, it is also the responsibility of Government to protect its own heritage, cultural and archaeological sites. In hot pursuit of development work, the destruction of rich archaeological and heritage site and monuments is neither permissible nor desirable. The government at the time of implementing project was required to device and implement a co-

herent and coordinated plan to meet its obligation of development as well as protection of its heritage sites, simultaneously, and not that after starting the development, the NOCs to be procured for construction near heritage sites. We therefore of the view that petitioners makes out a good prima facie case.

15. So far question of irreparable loss is concerned, the learned counsel has passionately urged that the project is liable to suffer irretrievable financial loss if a stay was granted. The entire gamut of his arguments centred on aspects relating to monetary damages. We are aware of the financial implications and have fast tracked the case to be heard on a day to day hearing from 04.1.2016. Monetary loss, to say the least, can be recovered and retrieved. What cannot be retrieved and repaired is the soul of a nation. If, in the construction of the project and thereafter during its operation upon completion, any harm is caused to the Special Immovable antiquity or Special premises, that would be irreparable and beyond retrieval. No amount of money would be sufficient to recompense it. The argument of the learned counsel advances a special interest as against a general interest. We must minimize the risk to our heritage, and to our national pride by extension, while we can and to preserve it inviolate. This is the theme at the heart of the Act of 1975 and Ordinance of 1985. When monetary

loss is equated with damage, which may be caused to heritage sites and monuments, we have no manner of doubt in our mind that protection of heritage sites as an interim relief should have precedent over economic interest. Even if there is a reasonable suspicion that some harm may be caused to precious heritage sites and monuments, it is better to grant stay rather wait till any monument or heritage site is actually damaged.

16. Another aspect which will impact the determination of the balance of convenience and will also serve as a response to the basis of Kh. Haris Ahmad's arguments regarding the project being in the public interest is that the constitutional petition is in the nature of a public interest litigation. A social action petition brought by concerned citizens of Lahore. Thus it is not a case of individual interest versus public interest. Both the parties urge overwhelming public interest to weigh on their side. This Court has thus to perform the delicate task of balancing the competing claims of public interests.

17. So far as argument of the respondent that public work cannot be stayed under Article 199(4) of the Constitution, suffice it to say that public work is not being stayed but only construction within 200 feet of heritage sites has been prayed to be stayed which is not only mandate of law but also legal obligation of the State itself in

order to protect and preserve its archeological, heritage and historical sites. Notwithstanding the above, we are not in doubt that the principles which govern the grant of temporary injunction under the Code of Civil Procedure, 1908 also apply to the grant of interim relief in application under Article 199 (See Farid Ahmad Versus Ghiasuddin (1968 SCMR 88). Kh. Haris Ahmad, Advocate invoked to his aid the provisions of clause 4 of Article 199 of the Constitution which reads as under:

“(4) Where-----

- (a) an application is made to a High Court for an order under paragraph (a) or paragraph (c) of clause (1), and
- (b) the making of an interim order would have the effect of prejudicing or interfering with the carrying out of a public work or of otherwise being harmful to the public interest (**or State property**) or of impeding the assessment or collection of public revenues.

The Court shall not make an interim order unless the prescribed law officer has been given notice of the application and he or any person authorized by him in that behalf has had an opportunity of being heard and the

Court, for reasons to be recorded in writing, is satisfied that the interim order---

- (i) would not have such effect as aforesaid; or
- (ii) would have the effect of suspending an order or proceeding which on the face of the record is without jurisdiction.”

According to the learned counsel this Court is not empowered to make an interim order which would have the effect of prejudicing or interfering with the carrying out of a public work or of otherwise being harmful to the public interest. For reasons to be recorded in writing, this Court is obligated to be satisfied on this count. While putting that construction on the powers of this Court to grant interim relief, the learned counsel is merely reading paragraph b(i) in isolation and not paragraph (b) in its entirety. The satisfaction of this Court has to be with regard to either of the conditions (i) and (ii) mentioned in paragraph (b) which have to be read disjunctively. It has to be borne in mind that this provision does not confer any new jurisdiction to grant interim relief on this Court (that is assumed to inhere in this Court on the general principle that where the Court has power to pass an order finally, it will generally have the power to make an interim order also). It is merely restricted and hedged in by the two conditionalities of

giving notice to the prescribed law officer and for reasons to be recorded in writing. If this Court is satisfied that the interim order would have the effect of suspending an order or proceeding which on the face of the record is without jurisdiction, it may, at its discretion, grant the interim relief. Therefore, the satisfaction could either be with regard to the effect delineated in paragraph (b) or with regard to the suspension of a void order given in paragraph b(ii). Apart from our holding above that the interim relief shall not interfere with the carrying out of a public work, we are here more concerned with the second category regarding suspension of an order which on the face of the record is without jurisdiction.

18. In view of above, this **application is allowed, the NOCs dated 16.11.2015 and 30.11.2015 are suspended and respondents are restrained to carry out any construction within distance of 200 feet of protected immovable antiquity and special premises mentioned in para 9 of this order.**

19. To come up for arguments on main writ petition already fixed on 04.2.2016.

(SHAHID KARIM)
JUDGE

(ABID AZIZ SHEIKH)
JUDGE.

Rizwan

